

GINSBURG, J., concurring

the federal structure of our Government. Whether the Tenth Amendment is regarded as simply a “‘truism,’” *New York, supra*, at 156 (quoting *United States v. Darby*, 312 U. S. 100, 124 (1941)), or whether it has independent force of its own, the result here is the same.

* * *

There is no basis in precedent or principle to deny petitioner’s standing to raise her claims. The ultimate issue of the statute’s validity turns in part on whether the law can be deemed “necessary and proper for carrying into Execution” the President’s Article II, § 2, Treaty Power, see U. S. Const., Art. I, § 8, cl. 18. This Court expresses no view on the merits of that argument. It can be addressed by the Court of Appeals on remand.

The judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE GINSBURG, with whom JUSTICE BREYER joins, concurring.

I join the Court’s opinion and write separately to make the following observation. Bond, like any other defendant, has a personal right not to be convicted under a constitutionally invalid law. See Fallon, *As-Applied and Facial Challenges and Third-Party Standing*, 113 Harv. L. Rev. 1321, 1331–1333 (2000); Monaghan, *Overbreadth*, 1981 S. Ct. Rev. 1, 3. See also *North Carolina v. Pearce*, 395 U. S. 711, 739 (1969) (Black, J., concurring in part and dissenting in part) (“Due process . . . is a guarantee that a man should be tried and convicted only in accordance with valid laws of the land.”).

In this case, Bond argues that the statute under which she was charged, 18 U. S. C. § 229, exceeds Congress’ enumerated powers and violates the Tenth Amendment. Other defend-